

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against TELEFÓNICA MÓVILES ESPAÑA, S.A.U. (hereinafter, the respondent) without their request receiving the legally established response.

The complainant states that their personal data has been used to contract high-end mobile services and devices without their consent. They provide emails received regarding the registration for such services, a police report, and a complaint made to the telecommunications operator in question.

SECOND: The Agency initially decides to archive the proceedings, considering that the complaint presented has been adequately addressed.

Namely:

“...Once the reasons presented and the recording provided by the respondent have been analyzed, this Agency considers, in accordance with the doctrine of the National Court, as collected -among others- in its Judgment of April 29, 2010, which argues that: ‘the issue is not to determine whether the appellant processed the complainant's personal data without their consent, but whether they exercised reasonable diligence in trying to identify the person with whom they signed the contract,’ that the respondent has acted with the diligence normally required in a service operation such as the contracted ones, without any infringement being noted in the jurisdictional scope of the Spanish Agency for the Protection of Data, and consequently, the opening of a sanctioning procedure is not warranted. All of this, without prejudice to the fact that the Agency, applying the investigative and corrective powers it holds, may carry out subsequent actions related to the data processing referred to in the complaint.

For all the above, by the Director of the Spanish Agency for the Protection of Data, IT IS AGREED:

FIRST: TO ARCHIVE the complaint...”

THIRD: The complainant, disagreeing with the archiving of the proceedings, submits a motion for reconsideration which is resolved favorably and gives rise to the current complaint, the conclusion of which is as follows:

“...In the motion for reconsideration, the appellant alleges that their right of access has still not been addressed, as it has been denied in a manner they consider unjustified by means of a letter dated November 24, 2022. They emphasize that the resolution only refers to the appearance of legitimacy and good right of the contracting, without...

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mention access, and considers that it is not true that the respondent acted with reasonable diligence (...) Consequently, once the right of access has been exercised, the responsible entity must respond, and, if it deems such access appropriate, choose the manner in which it will provide the information, ensuring that the interested person obtains a copy of their data and the information associated with it (...)

In the present case, there is evidence that the respondent processed data of the appellant, both in managing the contract subject to the claim and in receiving the request for access to personal data and, subsequently, the complaint submitted to this Agency. In this regard, there is a denial of the right of access based on the blocking situation in which the data is found. This modality is included in Article 32.1 of the LOPDGDD, which states that:

1. The data controller shall be obliged to block the data when it proceeds to rectify or delete it. In this

regard, it should be noted that personal data subject to the blocking modality cannot be processed; however, as has already been examined on previous occasions by this Agency, this does not imply that the data that the controller had and processed while the contractual relationship lasted cannot be made available to the affected party. Thus, on several occasions, this Agency has determined that the request for access must be addressed in accordance with the provisions of Article 15 of the GDPR, even if this request refers to data that has been subject to blocking. Additionally, the respondent has not justified that all the data of the appellant that it holds has been deleted and subjected to the blocking modality. Therefore, in the present case, the appeal filed should be upheld...”

FOURTH: On September 1, 2023, the Agency forwarded the original complaint, the appeal for reconsideration submitted by the respondent, and the favorable resolution of said appeal to the respondent entity, and granted the respondent a hearing period of ten business days to submit any allegations it deemed appropriate.

The respondent, in summary, states that it has addressed the right but does not prove having sent the response to the complainant.

FIFTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten business days, they may formulate any allegations they consider appropriate. The complainant has not submitted any allegations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including “ordering the controller or processor to comply with requests to exercise the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, and the request shall be considered fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information regarding the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others; that is, the right of access shall be granted in such a way that it does not affect the data of third parties.

V

Conclusion

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During the processing of this procedure, the entity being claimed has responded to this Agency to address the requested right of access (the reason for the acceptance of the appeal for reconsideration submitted by the claimant), but it has not demonstrated that it has addressed the request by sending the required response to the request.

Given that a copy of the necessary communication that must be directed to the claiming party informing them about the decision made regarding the exercise of rights request is not attached, it is

appropriate to accept the claim that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR, Article 32 of the GDPR, and Article 6.1 of the GDPR have been infringed, and to urge TELEFÓNICA MÓVILES ESPAÑA, S.A.U. with NIF A78923125, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be addressed, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to TELEFÓNICA MÓVILES ESPAÑA, S.A.U.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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